

25PSCV02892 25PSCV02892

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV02892 Hearing Date: July 15, 2026 Dept: H

Moreno v. San Antonio, Case

No. 25PSCV02892

ORDER ON DEFAULT JUDGMENT APPLICATION

Plaintiff Guadalup Moreno's

Application for Default Judgment is DENIED without prejudice.

Background

Plaintiff Guadalupe Moreno

("Plaintiff") alleges that she sustained injuries and damages in a September 6, 2023 motor vehicle accident at Gales and Nogales in Rowland Heights.

On May 26, 2023, Plaintiff filed a complaint, asserting causes of action against Jayson Subida San Antonio ("Defendant") and Does 1-20 for: (1) Motor Vehicle and (2) General Negligence.

On November 3, 2025, Defendant's default was entered.

The Court held an Order to Show Cause

Re: Default Judgment on March 16, 2026. The Court denied Plaintiff's application for judgment without prejudice on the following grounds:

1. Plaintiff failed to dismiss defendants not in default;

2. Plaintiff did not sufficiently describe her costs; and

3. Plaintiff sought \$300,000.00 in general damages on a special damages claim of \$11,587.14, and Plaintiff had not provided a basis for the correlation (see *Jones v. Interstate Recovery Service* (1984) 160 Cal.App.3d 925, 929).

On June 1, 2026, Plaintiff filed an Amended Declaration in Support of Default Judgment from her counsel. She also filed an updated CIV-100 Request for Court Judgment and JUD-100 Proposed Judgment.

An Order to Show Cause Re Default Judgment is set for July 15, 2026.

Discussion

Plaintiff's Application for Default Judgment is denied without prejudice. The following defects are noted:

1. Counsel's accounting clarifies that \$458.34 of Plaintiff's costs are claimed for "\$350 admin. Fees and records Request fee" [sic]. (Purcell Decl., ¶ 11.) From Counsel's records it is unclear what an "Administrative Fee" was incurred for, and the "Records Request" fee appears to relate to "delivery services/messengers," which the Court is not persuaded is reasonable and necessary. (See *id.*, Exh. E.) These costs are denied. Any subsequent CIV-100 or JUD-100 should omit this amount.

2. Counsel does not have personal knowledge to support Plaintiff's claim for general damages. As a result, the sole evidence in the record supporting Plaintiff's claim is a single paragraph in her first declaration in support of judgment. This is insufficient. Plaintiff is ordered to submit a declaration based on her personal knowledge and counsel to submit a brief, no longer than 3 pages, demonstrating the basis to award general damages approximately 10 times the amount of Plaintiff's special damages.

3. Plaintiff's calculation of

prejudgment interest is erroneous in several respects. First, it appears she has included her costs in her principal damages. (See Purcell Decl., ¶ 12.) This is improper. Second, and more importantly, she has included all her general damages in her calculation of prejudgment interest, without demonstrating they were immediately incurred or ascertainable on the date of her accident. In fact, some of these damages are admittedly incurred on a day-to-day basis or were not experienced until after the accident. Plaintiff is ordered to recalculate her interest or explain the basis for prejudgment interest to begin accruing for all damages on the date of the accident.

Accordingly, the application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues.